

Exhibit A-1 – Representative Claim Chart for U.S. Pat. No. 7,403,788***Mantis Communications, LLC v. Culver Franchising System, Inc. (E.D. Tex.)***

Note: This representative claim chart is made solely for this action, and is based upon information known at this time, including Mantis Communications, LLC (“Mantis”)’s understanding of the information currently available to Mantis. This is a representative chart for a representative claim, provided for pleading purposes. This chart does not represent Mantis’ infringement contentions, the asserted claims, or all of Mantis’ allegations regarding infringement. Mantis will provide infringement contentions according to the schedule entered by the Court. Mantis further reserves the right to assert additional or different theories of infringement, including infringement under the doctrine of equivalents.

Infringement analysis provided for any preamble should not be construed as an admission that such preamble is limiting.

U.S. Patent No. 7,403,788

7,403,788	Culver Franchising System, Inc. (www.culvers.com, Culver Franchising System, Inc. mobile application, and point of sale systems)
1. [Preamble] A system for enabling targeted content delivery to a mobile device, said mobile device having a device address, said device address having associated therewith at least one unique identifier, said system comprising:	To the extent the preamble is limiting, Culver Franchising System, Inc. (“Culver’s” or “Defendant”) provides systems to initiate communications on electronic devices enabling targeted content delivery to a mobile device user, said mobile device having a device address, said device address having associated therewith at least one unique identifier, e.g.: Defendant provides a website, mobile app, and point-of-sale (“POS”) system (each, a “Point of Interaction” or “POI”). Each POI initiate communications on electronic devices to enable targeted content delivery via SMS text messaging to a mobile device or mobile device user. While there may be some overlap in the components or technology used by each POI, each POI is a separate channel of infringement and is separately accused. Each POI initiates communications to enable targeted content delivery to a mobile device. The content includes SMS text messages sent to the customer’s mobile device. The mobile device can be, for example, a mobile phone, tablet, a handheld mobile computer, and the like. The mobile device address can be, for example, a phone number associated with the device. With respect to all POIs, the unique ID can be, for example, a phone number associated with the device, or another item of data that uniquely identifies the device. The Culver’s POIs enable mobile SMS messaging and other types of notification-based targeted

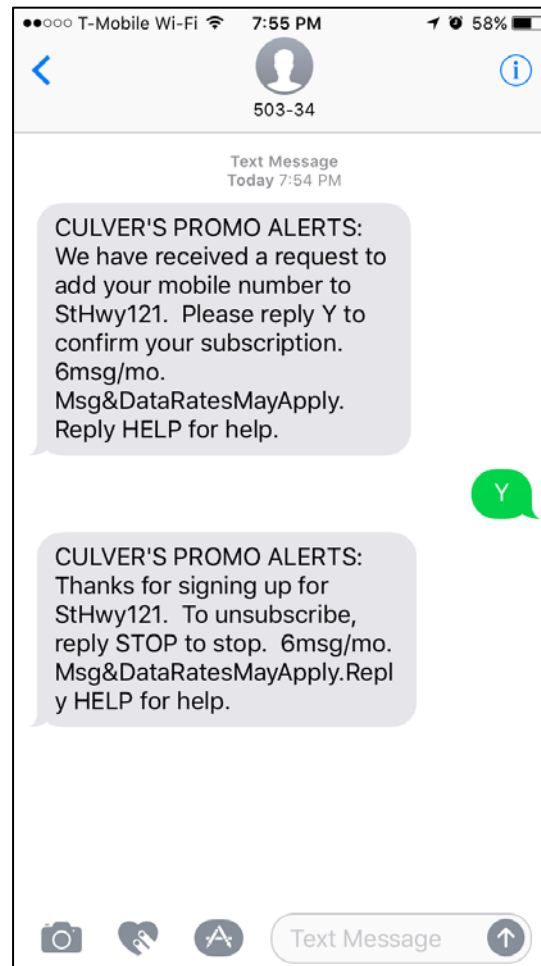
content delivery to mobile device of a user. The documents demonstrate and explicitly disclose activities adopted by Culver's for targeting promotional offers, coupons and advertisements to one or more mobile numbers associated with a user's mobile device.

The Culver's POIs have specific web-pages or user interfaces and/or specific slots on the web-pages or user interfaces from which the input of the user is requested. This input acts a trigger for action(s)/event(s). The trigger action(s)/event(s) enable delivery of targeted content. There are web-pages or user interfaces and/or specific slots on the web-pages or user interfaces on the Culver's POIs that explicitly specify the number of promotional offers that will be sent to the mobile device of the user. Further, these pages/slots on the website or user interfaces of Culver's request approval of delivery of promotional offers by means of checkboxes, textboxes, buttons, and the like.

As one example, the Culver's POIs provide websites or user interfaces where the user may provide information pertaining to mobile device addresses and the like, e.g.:

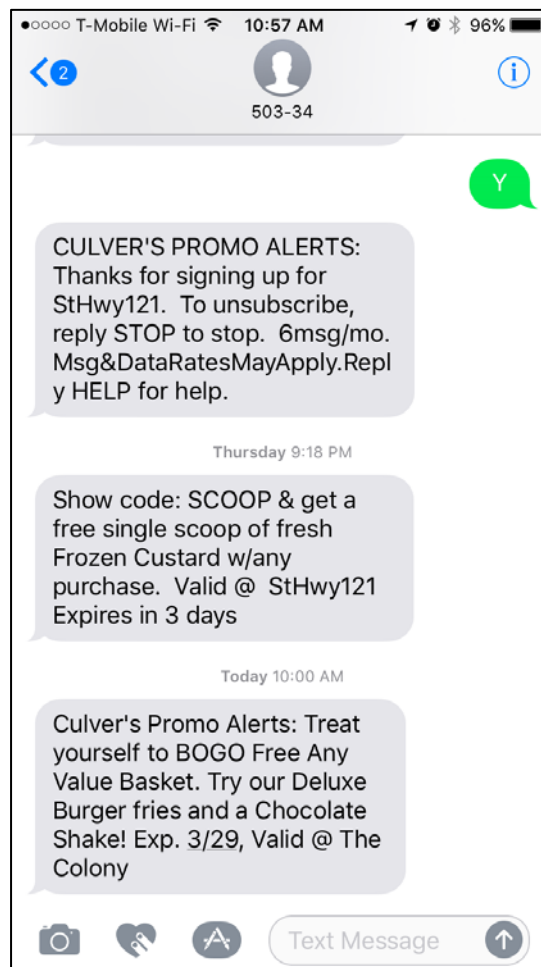
The screenshot shows the Culver's website header with navigation links: CONTACT US, CAREERS, OWN A CULVER'S, MENU, FLAVOR OF THE DAY, INSIDE CULVER'S, DELICIOUS PERKS, and a search bar labeled 'FIND YOUR CULVER'S:'. Below the header is a 'JOIN TEXT CLUB' section. It features a headline 'JOIN TEXT CLUB' and a sub-headline 'Sign up for Text Club and receive a FREE scoop of Fresh Frozen Custard with any purchase.' There are two input fields: 'Mobile Phone' and 'Confirm Mobile Phone'. Below these fields is a disclaimer: 'Standard message and data rates may apply. Text STOP to opt out. Texts may be sent using an automatic telephone dialing system. Consent not required for any purchase. You can opt out at any time by replying STOP. For full terms, visit our [Text and eClub Terms of Use](#).' A blue 'SUBMIT' button is located below the disclaimer. At the bottom left of the form, it says '*Required fields'.

(Screen shot of website signup to receive SMS offers)



(Screen shot SMS offer messages signup)

Once the mobile device addresses are obtained, Culver's uses short codes to enable targeted content delivery to the user's mobile device:



(Screen shot of SMS offer via short code)

With respect to short codes, “Each message addressed to an active short code is routed to an application. Although you can develop and host applications yourself, there are providers that specialize in software development and hosting for mobile messaging applications. In addition to technical expertise, most application providers can advise you on the best techniques for maximizing participation and campaign results. Most application providers are specialists in a specific type of application, such as voting/polling, marketing or gaming.”

(see <https://www.usshortcodes.com/info/partners/overview/>, incorporated herein by reference.)

For example, as stated in its “Text Club Terms of Use,” Culver’s uses short code 50334 to send users SMS “Promo Alerts”:

1. Text CULVERS to 50334 receive Culver’s Promo Alerts. 6 msg/mon. There is no fee from Culver’s to receive messages. Message & data rates may apply— this can be checked with your mobile service provider. Charges are billed and payable to your mobile service provider or deducted from your prepaid account. Consent is a not a requirement for purchase

2. Data obtained from you in connection with this SMS service may include your cell phone number, your carrier’s name and the date, time and content of your messages. We may use this information to contact you and to provide the services you request from us

[EXAMPLE ON THE NEXT PAGE]

TEXT CLUB

1. Text CULVERS to 50334 receive Culver's Promo Alerts. 6 msg/mon. There is no fee from Culver's to receive messages. Message & data rates may apply- this can be checked with your mobile service provider. Charges are billed and payable to your mobile service provider or deducted from your prepaid account. Consent is not a requirement for purchase.
2. Data obtained from you in connection with this SMS service may include your cell phone number, your carrier's name and the date, time and content of your messages. We may use this information to contact you and to provide the services you request from us
3. For information on data collection and use, please read our full corporate [Privacy Policy](#)
4. We will not be liable for any delays in the receipt of any SMS messages as delivery is subject to effective transmission from your network operator
5. The service is available on these US carriers only: Verizon Wireless, Sprint, Boost, T-Mobile®, AT&T, Alltel, ACS Wireless, Bluegrass Cellular, Carolina West Wireless, CellCom, Cellular One of East Central Illinois (ECIT), Cincinnati Bell, Cricket, C-Spire Wireless, Duet IP (AKA Max/Benton/Albandy), Element Mobile, Epic Touch, GCI Communications, Golden State, Hawkeye (Chat Mobility), Hawkeye (NW Missouri Cellular), Illinois Valley Cellular (IVC), Inland Cellular, iWireless, Keystone Wireless (Immix/PC Management), MetroPCS, MobiPCS, Mosaic, MTPCS/Cellular One (Cellone Nation), Nex-Tech Wireless, nTelos, Panhandle Telecommunications, Pioneer, Plateau, Revol Wireless, Rina-Custer, Rina-All West, Rina- Cambridge Telecom Coop, Rina-Eagle Valley Comm, Rina-Farmers Mutual Telephone Co, Rina-Nucla Nutria Telephone Co, Rina- Silver Star, Rina- South Central Comm, Rina- Syringa, Rina- UBET, Rina- Manti, Simmetry, South Canaan/CellularOne of NEPA, Thumb Cellular, Union Wireless, United Wireless, U.S. Cellular, Viaero Wireless, Virgin Mobile, West Central Wireless (includes Five Star Wireless).

(Screen shot of Defendant's Privacy Policy 1/2)

6. *As a member of Culver's alerts, you will receive 6 automated messages per month to the mobile number provided. You can unsubscribe from this service at any time by texting 'STOP' to 50334*

7. *By subscribing to Culver's alerts, the user consents to receive, from time to time further text messages from Culver's, other parties within Culver's, and its partners. Message & data rates may apply*

8. *If you have any questions, text **HELP** to 50334 or contact us at 844-263-5451*

[EXAMPLE ON NEXT PAGE]

6. As a member of Culver's alerts, you will receive 6 automated messages per month to the mobile number provided. You can unsubscribe from this service at any time by texting '**STOP**' to 50334

7. By subscribing to Culver's alerts, the user consents to receive, from time to time further text messages from Culver's, other parties within Culver's, and its partners. Message & data rates may apply

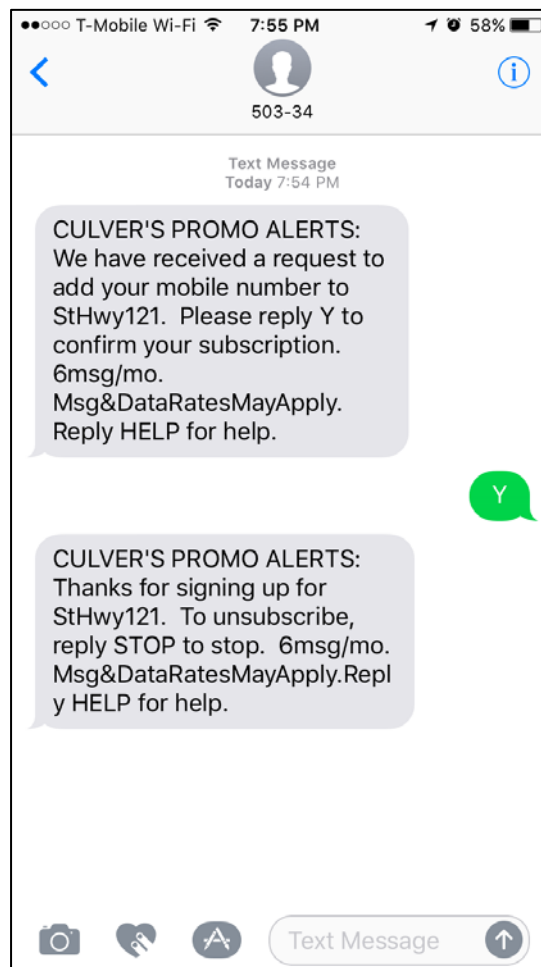
8. If you have any questions, text **HELP** to 50334 or contact us at 844-263-5451

9. Alerts sent via SMS may not be delivered if the mobile phone is not in range of a transmission site, or if sufficient network capacity is not available at a particular time. Even within a coverage area, factors beyond the control of the wireless carrier may interfere with message delivery, including the customer's equipment, terrain, proximity to buildings, foliage, and weather. The wireless carrier does not guarantee that alerts will be delivered and will not be liable for delayed or undelivered messages.

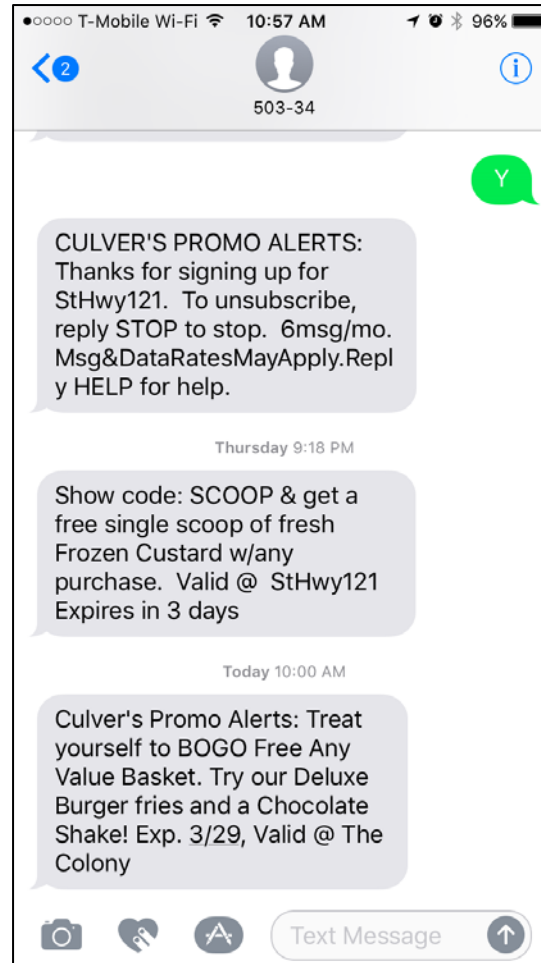
(Screen shot of Defendant's Privacy Policy 2/2)

(See <https://www.culvers.com/delicious-perks/join-the-club/terms> incorporated herein by reference)

As an example, Culver's sends SMS messages via the short code 50334, enabling targeted content delivery to the user's mobile device:



(Screen shot SMS offer messages signup)



(Screen shot of SMS offer via short code)

In yet another example, the Culver's website specifies in its Privacy Policy that it will access the user device address for targeted delivery of promotional and offer-based content:

THE INFORMATION WE COLLECT

As used in this Privacy Policy, "Personal Information" means any information that is linked to your identity such as your name, street address, telephone number, mobile number, screen name, age and/or email address. The site you entered may collect some or all of these types of Personal Information through a sweepstakes, contest, game or promotion, or a registration form. Our website promotion may require registration and disclosure of particular information such as an email address in order for you to participate in sweepstakes, games or other activities. In order to register for our promotions, we require you to disclose your name, zip code, email address, birth date and in some cases your mobile number. Culver Franchising System, Inc. will not collect any Personal Information from your visits to our website unless you provide your Personal Information to us voluntarily, and we will not require you to provide more information than is necessary to participate in our promotions. We also do not collect financial or other sensitive data information about our users.

When you provide us with Personal Information, you are authorizing us to use that information in accordance with the terms of this Privacy Policy, which includes your right to limit our use of your Personal Information as described in this Policy.

The site you entered may also collect Personal Information from you about a third party (e.g., the site might allow you to send an email or message to a friend, in which case we will need that person's name and email address). Please note that we use such information only for the specified purpose (e.g., to deliver the email message) and we will not contact the third party again by email unless and until the third party contacts us or provides permission to do so.

(Screen shot of Defendant's privacy policy)

THE WAY WE USE PERSONAL INFORMATION

When you supply Personal Information at Culver's website, we will consolidate such Personal Information and use it for the purpose for which it was collected (e.g., to enter you in a sweepstakes or to fulfill the delivery of a sweepstakes prize) in accordance with the terms of this Privacy Policy. If you opt in to receive our eClub or text messages, we will also use it to contact you regarding Culver's products or promotions as well as other products and services, which may be requested by or otherwise of interest to you. At any time, however, you may opt out of such future contact by unsubscribing from our database by following the unsubscribe instructions included in each promotional email.

(Screen shot of Defendant's privacy policy)

[1a] a message application server;
and

Culver's provides a message application server, e.g.:

The message application server is a server component that communicates with the POI.

Culver's provides a message application server that communicates and processes messages and requests to and from the POI.

Culver's Privacy Policy discloses that they intend to collect names, street addresses, e-mail addresses, phone numbers, and other personal information from users, along with non-personal information, such as demographic other aggregated information]:

The documentation of Culver's discloses the following:

As used in this Privacy Policy, 'Personal Information' means any information that is linked to your identity such as your name, street address, telephone number, mobile number, screen name, age and/or email address. The site you entered may collect some or all of these types of Personal Information through a sweepstakes, contest, game or promotion, or a registration form. Our website promotion may require registration and disclosure of particular information such as an email address in order for you to participate in sweepstakes, games or other activities. In order to register for our promotions, we require you to disclose your name, zip code, email address, birth date and in some cases your mobile number.

[EXAMPLE ON NEXT PAGE]

THE INFORMATION WE COLLECT

As used in this Privacy Policy, "Personal Information" means any information that is linked to your identity such as your name, street address, telephone number, mobile number, screen name, age and/or email address. The site you entered may collect some or all of these types of Personal Information through a sweepstakes, contest, game or promotion, or a registration form. Our website promotion may require registration and disclosure of particular information such as an email address in order for you to participate in sweepstakes, games or other activities. In order to register for our promotions, we require you to disclose your name, zip code, email address, birth date and in some cases your mobile number. Culver Franchising System, Inc. will not collect any Personal Information from your visits to our website unless you provide your Personal Information to us voluntarily, and we will not require you to provide more information than is necessary to participate in our promotions. We also do not collect financial or other sensitive data information about our users.

When you provide us with Personal Information, you are authorizing us to use that information in accordance with the terms of this Privacy Policy, which includes your right to limit our use of your Personal Information as described in this Policy.

The site you entered may also collect Personal Information from you about a third party (e.g., the site might allow you to send an email or message to a friend, in which case we will need that person's name and email address). Please note that we use such information only for the specified purpose (e.g., to deliver the email message) and we will not contact the third party again by email unless and until the third party contacts us or provides permission to do so.

(Screen shot of Defendant's privacy policy 1/2)

Culver's Privacy Policy also describes how they will use information collected from users. Most notably to process messages to and from the users, including but not limited to, fulfilling user requests, fulfilling user purchases, customizing content on their sites, sending important information regarding the sites, and informing users of products, programs, services, promotions and other types of targeted content:

When you supply Personal Information at Culver's website, we will consolidate such Personal Information and use it for the purpose for which it was collected (e.g., to enter you in a sweepstakes or to fulfill the delivery of a sweepstakes prize) in accordance with the terms of this Privacy Policy. If you opt in to receive our eClub or text messages, we will also use it to contact you regarding Culver's products or promotions as well as other products and services, which may be requested by or otherwise of interest to you. At any time, however, you may opt out of such future contact by unsubscribing from our database by following the unsubscribe instructions included in each promotional email.

THE WAY WE USE PERSONAL INFORMATION

When you supply Personal Information at Culver's website, we will consolidate such Personal Information and use it for the purpose for which it was collected (e.g., to enter you in a sweepstakes or to fulfill the delivery of a sweepstakes prize) in accordance with the terms of this Privacy Policy. If you opt in to receive our eClub or text messages, we will also use it to contact you regarding Culver's products or promotions as well as other products and services, which may be requested by or otherwise of interest to you. At any time, however, you may opt out of such future contact by unsubscribing from our database by following the unsubscribe instructions included in each promotional email.

(Screen shot of Defendant's privacy policy)

[1b] a trigger system in communication with said message application server, said trigger system comprising:

Culver's provides a trigger system in communication with said message application server, said trigger system comprising, e.g.

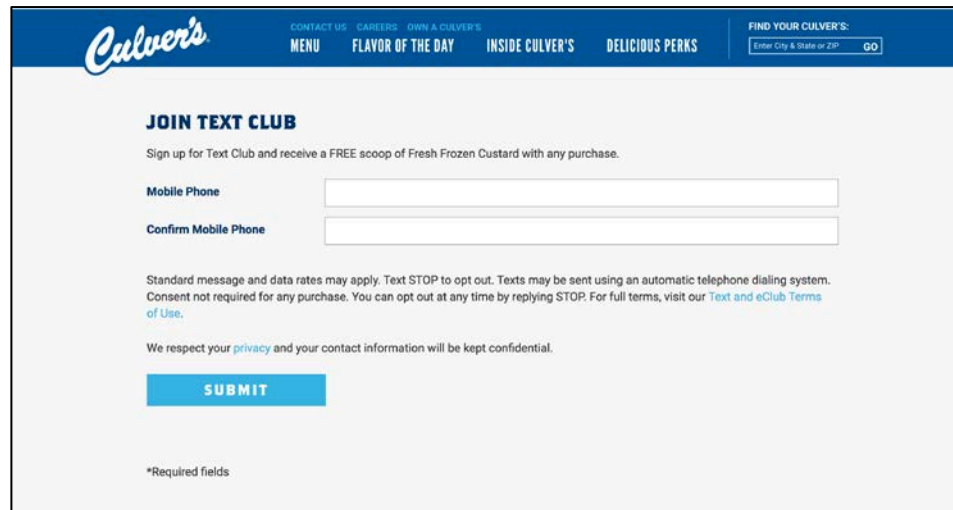
Culver's provides a trigger system for processing of trigger signals in communication with the message application server.

In this example, the trigger system of Culver's is a combination of a client-side web client of Culver's that is running on the non-mobile device of the user and a server in the backend.

The trigger system of Culver's is configured to receive trigger signals and communicate with a message application server for generation and delivery of targeted content to be delivered on user's mobile device.

In the example below, the trigger system is a combination of a client-side web client of Culver's that is running on a user's device and a backend server, e.g.:

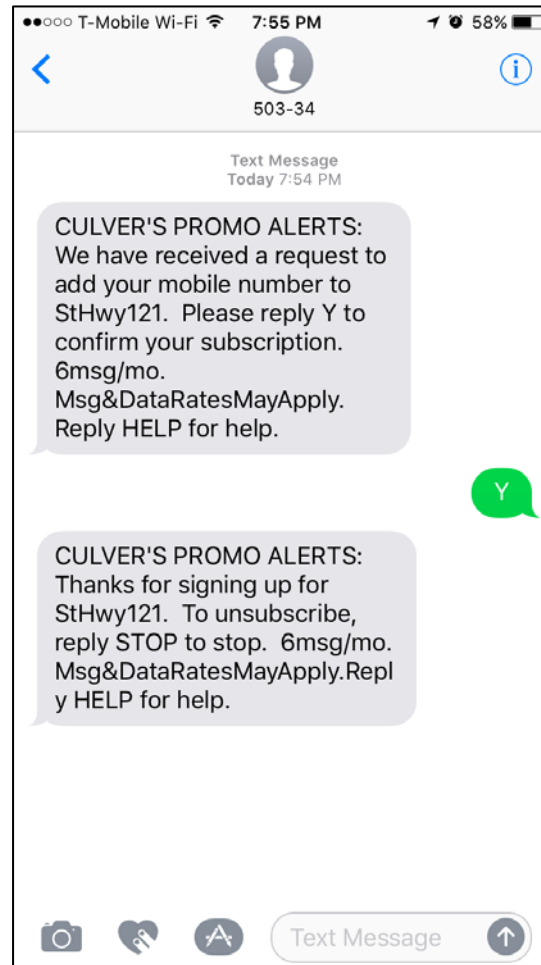
[EXAMPLE ON NEXT PAGE]



The screenshot displays the Culver's website's 'JOIN TEXT CLUB' sign-up page. The header features the Culver's logo on the left and navigation links (CONTACT US, CAREERS, OWN A CULVER'S, MENU, FLAVOR OF THE DAY, INSIDE CULVER'S, DELICIOUS PERKS) in the center. On the right, there is a search bar labeled 'FIND YOUR CULVER'S:' with a 'GO' button. The main content area is titled 'JOIN TEXT CLUB' and includes a promotional message: 'Sign up for Text Club and receive a FREE scoop of Fresh Frozen Custard with any purchase.' Below this, there are two input fields: 'Mobile Phone' and 'Confirm Mobile Phone'. A 'SUBMIT' button is positioned below the fields. A disclaimer states: 'Standard message and data rates may apply. Text STOP to opt out. Texts may be sent using an automatic telephone dialing system. Consent not required for any purchase. You can opt out at any time by replying STOP. For full terms, visit our [Text and eClub Terms of Use](#).' A privacy notice follows: 'We respect your [privacy](#) and your contact information will be kept confidential.' At the bottom, a note indicates '*Required fields'.

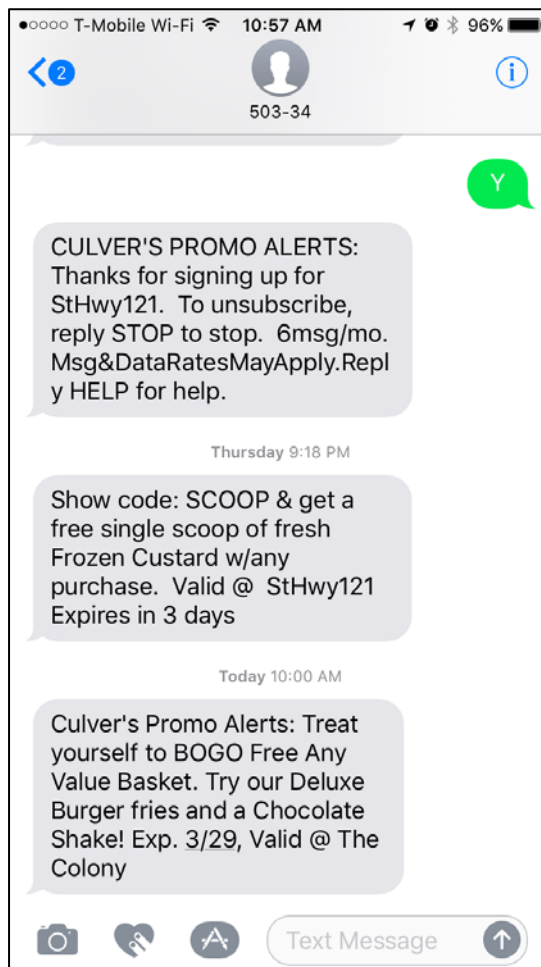
(Screen shot of website signup to receive SMS offers)

In another example, the trigger system of Culver's is a server end messaging application, said server end messaging application receiving short codes from third party inbuilt messaging application installed in mobile devices of users:

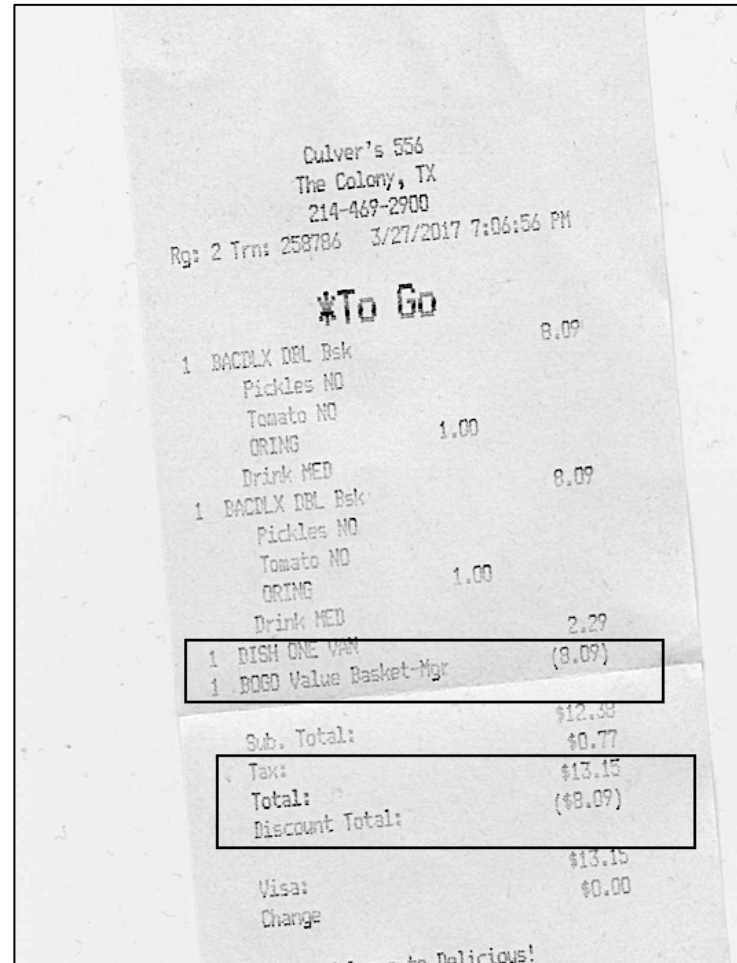


(Screen shot SMS offer messages signup)

In yet another example, the trigger system is a combination of Culver's in-store points of customer interaction such as the point of sale terminal receiving user inputs such as mobile identifiers, or customer elections to receive notifications, receipts or other targeted content sent to their mobile device, and a Culver's server in the backend enabling those notifications to be sent to customer's mobile devices.



(Screen shot of SMS offer via short code)



(Scanned image of receipt containing redemption of SMS offer)

[1c] a trigger client component configured to generate a trigger signal comprising a trigger action, user content request data and said at least one unique identifier; and	Culver's provides a trigger client component configured to generate a trigger signal comprising a trigger action, user content request data and said at least one unique identifier. With respect to Culver's POIs, the trigger client or device is the portion of the trigger system that generates the trigger signal, such as when a user inputs information, such as registering or making a purchase, or when a user completes a checkout, redeems reward points or gift cards, or signs up for a service, such as electronic receipts or a rewards program. With respect Culver's POIs, the trigger signal is a signal comprising the trigger action, user content request data, and a unique identifier. With respect to Culver's POIs, the trigger action may be a purchase request, a coupon redemption request, a coupon generation request, a coupon verification request, a subscription request, a registration request, an offer generation request, an offer verification request, a service request, a query, and a subscription request. With respect alto Culver's POIs, the user content request data includes, e.g., the purchase receipt, total price, discount available, discount available, offers applicable, deliverable areas, product related specifications, quantity, or other purchasing related information. With respect to Culver's POIs, the unique identifier is a phone number. Culver's provides a trigger client component running in background. The trigger client component generates a trigger signal. The trigger signal is a received set of data provided by the user (or alternately, automatically received by the webpage of Culver's), and comprises a trigger action, user content request data, and the at least one unique identifier. The trigger action includes, but is not limited to, at least one purchase request, coupon redemption request, coupon generation request, coupon verification request or subscription request. The user content request data includes but is not limited to the total price, discount available, offers applicable, deliverable areas, product related specification, quantity or other purchasing relating information. The unique identifier may include at least one phone number or other user device identifier.
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Users may request data via short codes.

With respect to short codes, “Each message addressed to an active short code is routed to an application. Although you can develop and host applications yourself, there are providers that specialize in software development and hosting for mobile messaging applications. In addition to technical expertise, most application providers can advise you on the best techniques for maximizing participation and campaign results. Most application providers are specialists in a specific type of application, such as voting/polling, marketing or gaming.”

(see <https://www.usshortcodes.com/info/partners/overview/>, incorporated herein by reference.)

For example, as stated in its “Text Club Terms of Use,” Culver’s uses short code 50334 to send users SMS “Promo Alerts”:

1. Text CULVERS to 50334 receive Culver’s Promo Alerts. 6 msg/mon. There is no fee from Culver’s to receive messages. Message & data rates may apply— this can be checked with your mobile service provider. Charges are billed and payable to your mobile service provider or deducted from your prepaid account. Consent is a not a requirement for purchase

2. Data obtained from you in connection with this SMS service may include your cell phone number, your carrier’s name and the date, time and content of your messages. We may use this information to contact you and to provide the services you request from us

[EXAMPLE ON THE NEXT PAGE]

TEXT CLUB

1. Text CULVERS to 50334 receive Culver's Promo Alerts. 6 msg/mon. There is no fee from Culver's to receive messages. Message & data rates may apply– this can be checked with your mobile service provider. Charges are billed and payable to your mobile service provider or deducted from your prepaid account. Consent is not a requirement for purchase.
2. Data obtained from you in connection with this SMS service may include your cell phone number, your carrier's name and the date, time and content of your messages. We may use this information to contact you and to provide the services you request from us
3. For information on data collection and use, please read our full corporate [Privacy Policy](#)
4. We will not be liable for any delays in the receipt of any SMS messages as delivery is subject to effective transmission from your network operator
5. The service is available on these US carriers only: Verizon Wireless, Sprint, Boost, T-Mobile®, AT&T, Alltel, ACS Wireless, Bluegrass Cellular, Carolina West Wireless, CellCom, Cellular One of East Central Illinois (ECIT), Cincinnati Bell, Cricket, C-Spire Wireless, Duet IP (AKA Max/Benton/Albandy), Element Mobile, Epic Touch, GCI Communications, Golden State, Hawkeye (Chat Mobility), Hawkeye (NW Missouri Cellular), Illinois Valley Cellular (IVC), Inland Cellular, iWireless, Keystone Wireless (Immix/PC Management), MetroPCS, MobiPCS, Mosaic, MTPCS/Cellular One (Cellone Nation), Nex-Tech Wireless, nTelos, Panhandle Telecommunications, Pioneer, Plateau, Revol Wireless, Rina-Custer, Rina-All West, Rina- Cambridge Telecom Coop, Rina-Eagle Valley Comm, Rina-Farmers Mutual Telephone Co, Rina-Nucla Nutria Telephone Co, Rina- Silver Star, Rina- South Central Comm, Rina- Syringa, Rina- UBET, Rina- Manti, Simmetry, South Canaan/CellularOne of NEPA, Thumb Cellular, Union Wireless, United Wireless, U.S. Cellular, Viaero Wireless, Virgin Mobile, West Central Wireless (includes Five Star Wireless).

(Screen shot of Defendant's Privacy Policy 1/2)

6. *As a member of Culver's alerts, you will receive 6 automated messages per month to the mobile number provided. You can unsubscribe from this service at any time by texting 'STOP' to 50334*

7. *By subscribing to Culver's alerts, the user consents to receive, from time to time further text messages from Culver's, other parties within Culver's, and its partners. Message & data rates may apply*

8. *If you have any questions, text **HELP** to 50334 or contact us at 844-263-5451*

[EXAMPLE ON NEXT PAGE]

6. As a member of Culver's alerts, you will receive 6 automated messages per month to the mobile number provided. You can unsubscribe from this service at any time by texting '**STOP**' to 50334

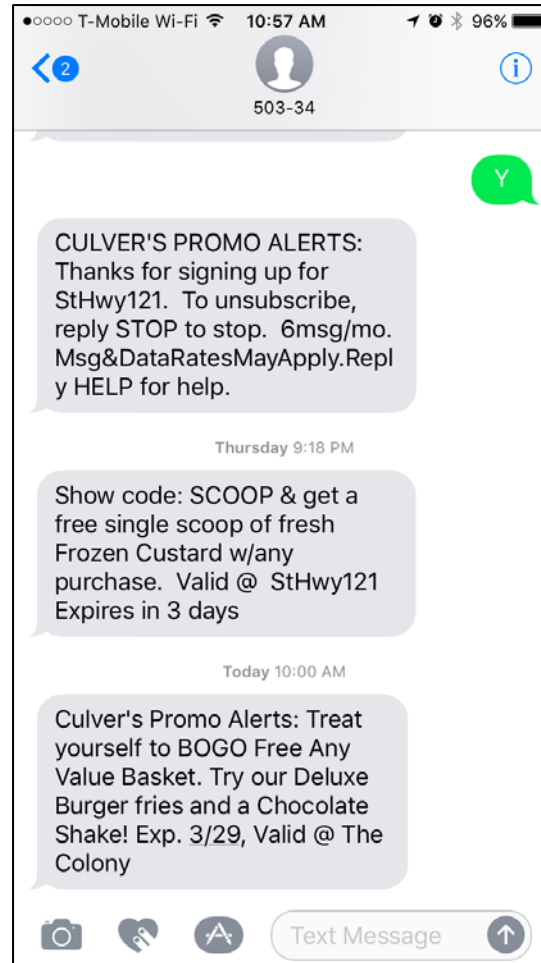
7. By subscribing to Culver's alerts, the user consents to receive, from time to time further text messages from Culver's, other parties within Culver's, and its partners. Message & data rates may apply

8. If you have any questions, text **HELP** to 50334 or contact us at 844-263-5451

9. Alerts sent via SMS may not be delivered if the mobile phone is not in range of a transmission site, or if sufficient network capacity is not available at a particular time. Even within a coverage area, factors beyond the control of the wireless carrier may interfere with message delivery, including the customer's equipment, terrain, proximity to buildings, foliage, and weather. The wireless carrier does not guarantee that alerts will be delivered and will not be liable for delayed or undelivered messages.

(Screen shot of Defendant's Privacy Policy 2/2)

(See <https://www.culvers.com/delicious-perks/join-the-club/terms> incorporated herein by reference)



(Screen shot of SMS offer via short code)

[1d] a trigger server component in communication with said trigger client component, said trigger server component configured to:

Culver's provides a trigger server component in communication with said trigger client component, said trigger server component being configured to, e.g.:

With respect to Culver's POIs, the trigger server is a server component with program code running on the backend, configured to receive and respond to messages from the POI.

Culver's provides a trigger server component that communicates with the trigger client component. In this example, the trigger server component of Culver's is program code running on the server side, configured to receive and respond to messages and other service requests from the POI.

The privacy policy of Culver's discloses that they will collect personal information, browsing information, device information or any other legally accessible information. Therefore, the trigger server component collects the information through Culver's POI.

THE INFORMATION WE COLLECT

As used in this Privacy Policy, "Personal Information" means any information that is linked to your identity such as your name, street address, telephone number, mobile number, screen name, age and/or email address. The site you entered may collect some or all of these types of Personal Information through a sweepstakes, contest, game or promotion, or a registration form. Our website promotion may require registration and disclosure of particular information such as an email address in order for you to participate in sweepstakes, games or other activities. In order to register for our promotions, we require you to disclose your name, zip code, email address, birth date and in some cases your mobile number. Culver Franchising System, Inc. will not collect any Personal Information from your visits to our website unless you provide your Personal Information to us voluntarily, and we will not require you to provide more information than is necessary to participate in our promotions. We also do not collect financial or other sensitive data information about our users.

When you provide us with Personal Information, you are authorizing us to use that information in accordance with the terms of this Privacy Policy, which includes your right to limit our use of your Personal Information as described in this Policy.

The site you entered may also collect Personal Information from you about a third party (e.g., the site might allow you to send an email or message to a friend, in which case we will need that person's name and email address). Please note that we use such information only for the specified purpose (e.g., to deliver the email message) and we will not contact the third party again by email unless and until the third party contacts us or provides permission to do so.

(Screen shot of Defendant's privacy policy)

[1e] receive said trigger signal, and	Culver's provides a trigger server component being configured to receive said trigger signal, e.g.: With respect to Culver's POIs, the trigger signal is a signal comprising the trigger action, user content request data and a unique identifier. The trigger server component associated with the Culver's trigger server is configured to receive the trigger signal. The trigger server component associated with the trigger server handles and further executes instructions dedicated to management and transfer of the trigger signal. In an example, the trigger server component may enable storing of the trigger signal components in the trigger server. In another example, the trigger server component receives the mobile number as a unique identifier and coupon code request data in the form of trigger signal.
[1f] send to said message application server said trigger signal for processing by said message application server;	Culver's provides a trigger server component being configured to send to said message application server said trigger signal for processing by said message application server, e.g.: With respect to Culver's POIs, the message application server is a server component that communicates with the POI. With respect to Culver's POIs, the trigger signal is a signal comprising the trigger action, user content request data and a unique identifier. The Culver's trigger server component sends the trigger signal comprising at least one unique identifier, user request data and trigger action data. The trigger signal is sent to the Culver's message application server for further processing of the trigger signal. For example, the processing of trigger signal includes but is not be limited to device address identification, storing of trigger signal content, updates of user information and generation of user requested data.

[1g] wherein said message application server is configured to:	Culver's provides a message application server, said message application server is configured to, e.g.: With respect to Culver's POIs, the message application server is a server component that communicates with the POI. The Culver's message application server is configured to execute specific tasks and in particular, it is configured to perform the tasks in the following elements.
[1h] receive from said trigger system said trigger signal, and in response thereto:	Culver's provides a message application server that is configured to receive from said trigger system said trigger signal, and in response thereto, e.g.: With respect to Culver's POIs, the trigger signal is a signal comprising the trigger action, user content request data and a unique identifier. The Culver's message application server receives the trigger signal comprising the trigger signal components. In an example, Culver's message application server is configured to store the trigger signal components. It may be a unique identifier associated with the user, a user request data and a trigger action data. Further, the message application server generates a response corresponding to the received trigger signal sent from the trigger server component. In an example, the response includes but is not limited to a mathematical, logical or any programmable or static set of suitable operations on the either individual or whole components of the trigger signal.
[1i] derive said mobile device address from said at least one unique identifier,	Culver's provides a message application server that is configured to derive said mobile device address from said at least one unique identifier, e.g.: With respect to Culver's POIs, the mobile device address or ID is a phone number. With respect to Culver's POIs, the unique identifier is a phone number. It is evident from the privacy policy of Culver's that the mobile device address is derived from the

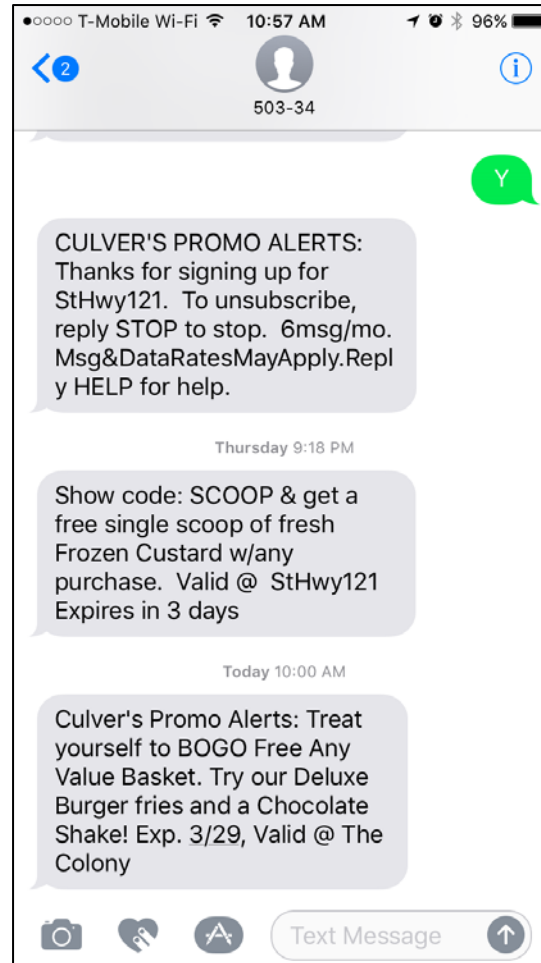
	received trigger components (i.e. at least one unique identifier). For example, the mobile number of the mobile device is the unique identifier and the mobile device address: THE INFORMATION WE COLLECT As used in this Privacy Policy, "Personal Information" means any information that is linked to your identity such as your name, street address, telephone number, mobile number, screen name, age and/or email address. The site you entered may collect some or all of these types of Personal Information through a sweepstakes, contest, game or promotion, or a registration form. Our website promotion may require registration and disclosure of particular information such as an email address in order for you to participate in sweepstakes, games or other activities. In order to register for our promotions, we require you to disclose your name, zip code, email address, birth date and in some cases your mobile number. Culver Franchising System, Inc. will not collect any Personal Information from your visits to our website unless you provide your Personal Information to us voluntarily, and we will not require you to provide more information than is necessary to participate in our promotions. We also do not collect financial or other sensitive data information about our users. When you provide us with Personal Information, you are authorizing us to use that information in accordance with the terms of this Privacy Policy, which includes your right to limit our use of your Personal Information as described in this Policy. The site you entered may also collect Personal Information from you about a third party (e.g., the site might allow you to send an email or message to a friend, in which case we will need that person's name and email address). Please note that we use such information only for the specified purpose (e.g., to deliver the email message) and we will not contact the third party again by email unless and until the third party contacts us or provides permission to do so. (Screen shot of Defendant's privacy policy)
[1j] generate content based on said user request data, and	Culver's provides a message application server that is configured to generate content based on said user request data, e.g.: In Culver's POIs, content or messages are generated based on the user request data. The generated content or message is, e.g., a message comprising direct or indirect mention of offers and deals, or a message containing customer support and relationship information. With respect to the point-of-sale POI, the generated content or message is, e.g., the customer's purchase receipt, or request for customer feedback regarding an in-store purchase. Offers may include a promotional code, a coupon, an offer to get rewards points or other benefits by shopping, an offer to receive a discounted price, an offer to obtain status information about a pending

purchase, an offer to obtain information about a past purchase, an offer to purchase a particular product, an offer to service a product, an offer to obtain financing, an offer to participate in marketing surveys, research or analysis programs, an offer to make payments electronically, an offer to review a product, an offer to obtain customer support, an offer to return a product, and an offer to obtain a rebate.

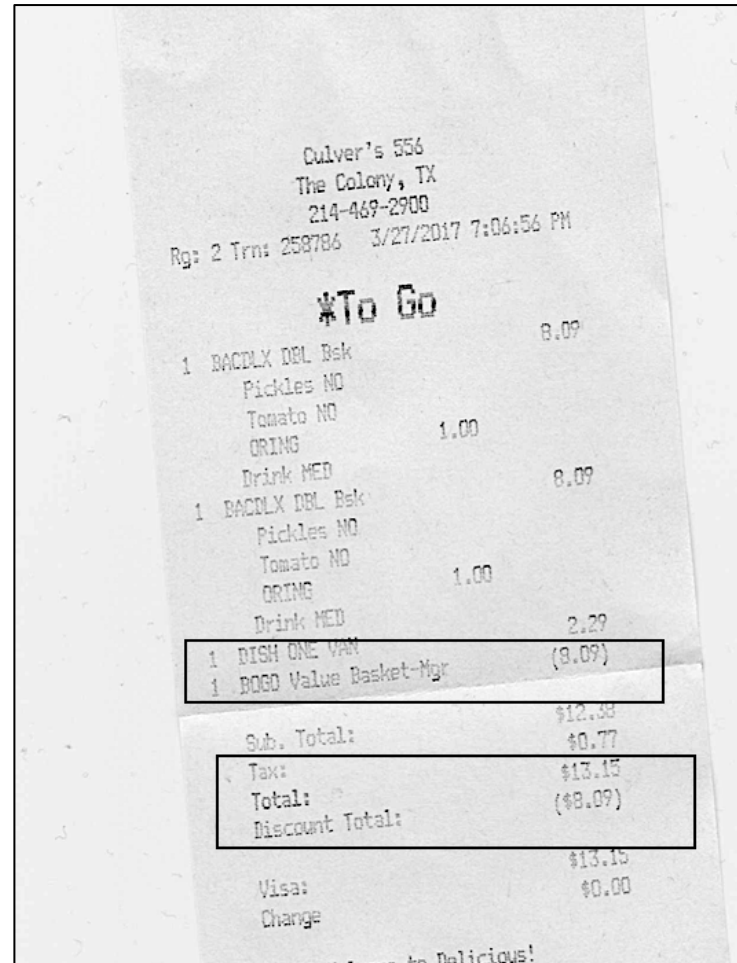
The Culver's message application server generates requested content based on requested user data.

In an example, the generated content is the customer's purchase receipt, or request for customer feedback regarding an in-store purchase:

[EXAMPLE ON NEXT PAGE]

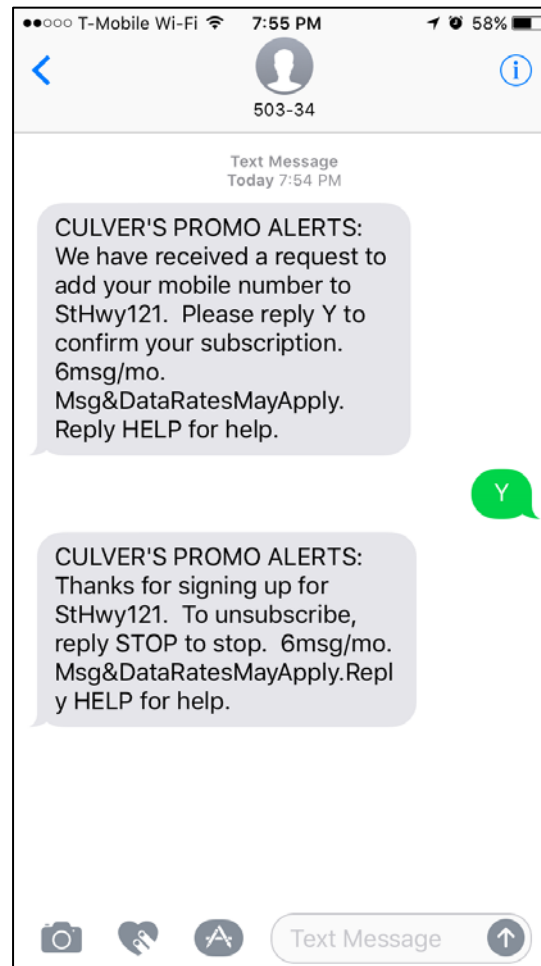


(Screen shot of SMS offer via short code)

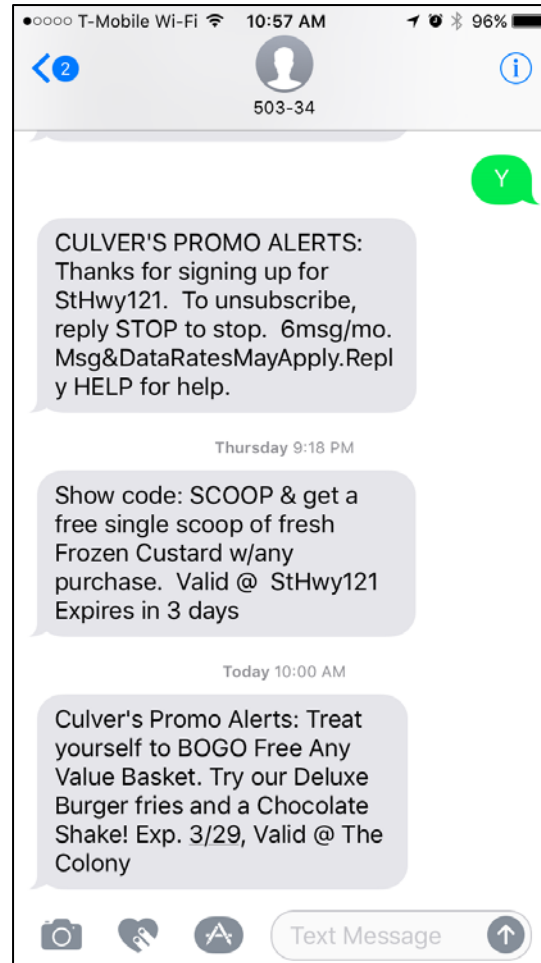


(Scanned image of receipt containing redemption of SMS offer)

As another example, Culver's also uses short codes to initiate communication, enabling targeted content delivery to the user's mobile device through SMS messages:

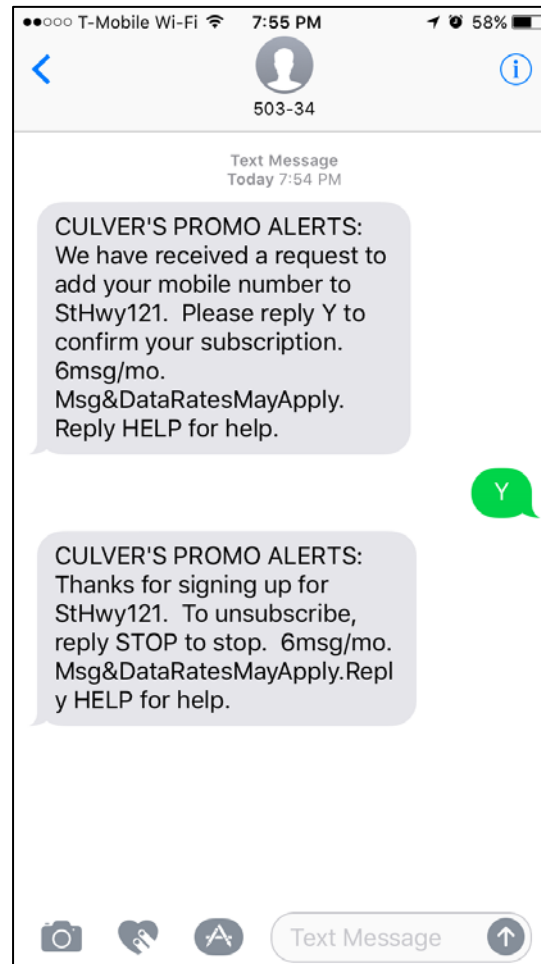


(Screen shot SMS offer messages signup)

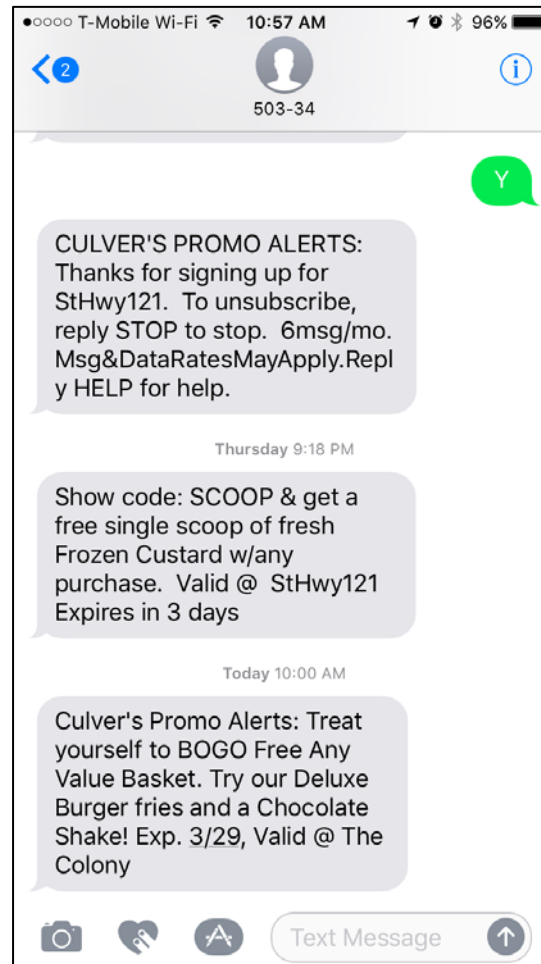


(Screen shot of SMS offer via short code)

[1k] send said generated content to said device address of said mobile device;	Culver's provides a message application server that is configured to send said generated content to said device address of said mobile device, e.g.: In Culver's POIs, content or messages are generated based on the user request data. The generated content or message is, e.g., a message comprising direct or indirect mention of offers and deals, or a message containing customer support and relationship information. With respect to the point-of-sale POI, the generated content or message is, e.g., the customer's purchase receipt, or request for customer feedback regarding an in-store purchase. Offers may include a promotional code, a coupon, an offer to get rewards points or other benefits by shopping, an offer to receive a discounted price, an offer to obtain status information about a pending purchase, an offer to obtain information about a past purchase, an offer to purchase a particular product, an offer to service a product, an offer to obtain financing, an offer to participate in marketing surveys, research or analysis programs, an offer to make payments electronically, an offer to review a product, an offer to obtain customer support, an offer to return a product, an offer to obtain a rebate, an offer to recover an account, an offer to get special deals such as for students, an offer to obtain coupons, an offer for a digital library, an offer to obtain legal information, an offer to download a mobile application, an offer to visit a website or data link, an offer to obtain relevant details regarding a product, an offer to locate a store, an offer regarding upgrades, or an offer for appointment or other reminders. The message application sends the generated content to the mobile device address associated with the mobile device of the user. In one example, Culver's uses short codes to initiate communication, enabling targeted content delivery to the user's device: [EXAMPLE ON NEXT PAGE]
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(Screen shot SMS offer messages signup)



(Screen shot of SMS offer via short code)

[1l] an offer application component:	Culver's provides an offer application component, e.g.: In an example, the offer application component or system is software running in the background of the web client or at the server end, and is configured to facilitate validation, analysis and redemption of offers received on the mobile device of the user. In another example, the offer application component or system is software running in the background of the mobile app or at the server end, and is configured to facilitate validation, analysis and redemption of offers received on the mobile device of the user. In yet another example, the offer application component or system is, software running in the background of the point-of-sale terminal or at the server end, and is configured to facilitate validation, analysis and redemption of offers received on the mobile device of the user. In yet another example, the offer application component is software running in background of the web client or at server end and is configured to facilitate validation, analysis and redemption of offers received on the mobile device of the user.
[1m] an offer entry system in communication with said offer application component, and an offer database in communication with said offer application component for storing said generated content and said user request data, wherein said offer entry system is configured to:	Culver's provides an offer entry system in communication with said offer application component, and an offer database in communication with said offer application component for storing said generated content and said user request data, wherein said offer entry system is configured to, e.g.: With respect to Culver's POIs, the offer entry system is, e.g., the system used to enter and redeem the offer, which includes the front end for receiving the offer, and the backend for processing the offer. E.g., for an offer comprising a promotional code, the offer entry system is the system used to enter and redeem the promotional code. E.g., for an offer comprising a coupon, the offer entry system is the system used to enter and redeem the coupon. E.g., for an offer to get rewards points or other benefits by shopping, the offer entry system is the system used to shop and obtain such rewards. E.g., for an offer to receive a discounted price, the offer entry system is the system used to shop and get

the discounted price.

E.g., for an offer to purchase a particular product, the offer entry system is the system used to purchase the product.

E.g., for an offer to obtain coupons, the offer entry system is the system to obtain the coupons.

E.g., for an offer to download a mobile application, the offer entry system is the system to download the mobile application.

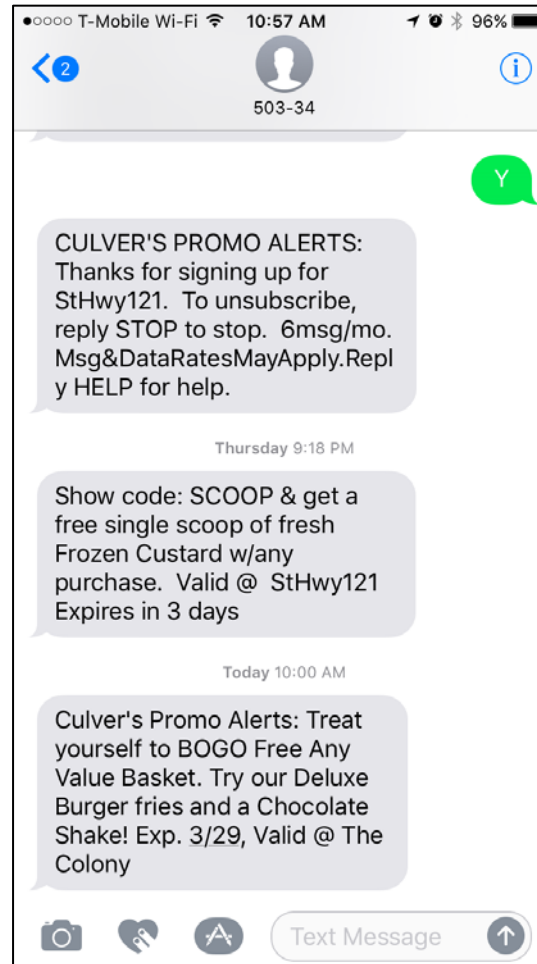
E.g., for an offer to visit a website or data link, the offer entry system is the system to visit the website or link.

E.g., for an offer to locate a store, the offer entry system is the system to locate a store.

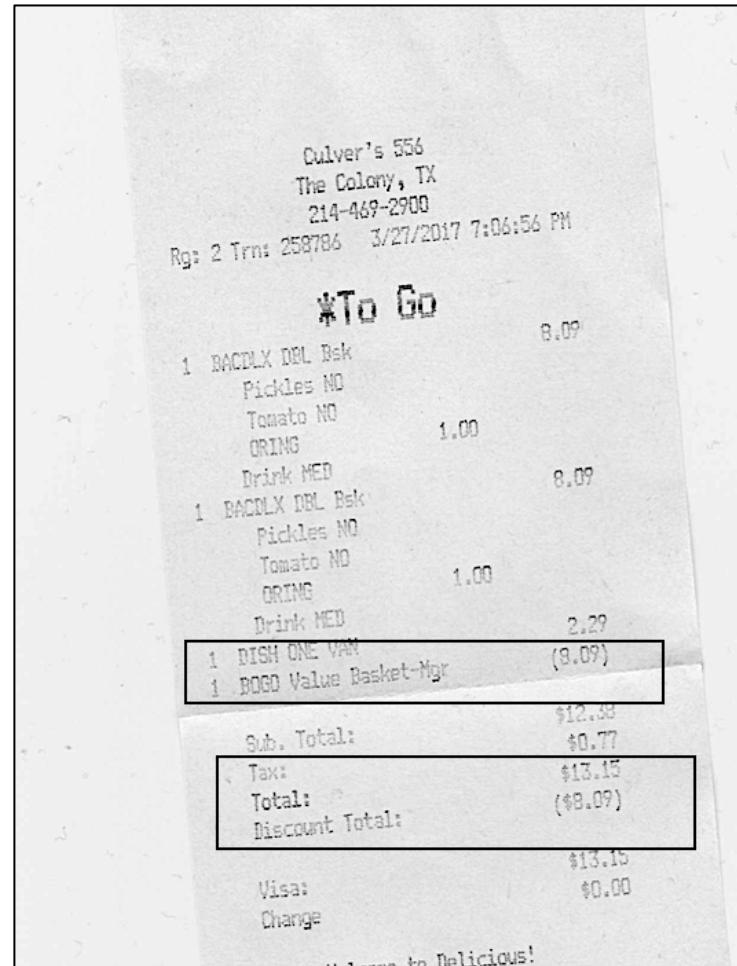
Culver's provides an offer entry system. The offer entry system communicates with the offer application component and an offer database. The offer database communicates with the offer application component for storing the generated content. The offer entry system enables storing of the generated content in the offer database.

In one example, the offer entry system is the in-store POS for Culver's:

[EXAMPLE ON NEXT PAGE]



(Screen shot of SMS offer via short code)



(Scanned image of receipt containing redemption of SMS offer)

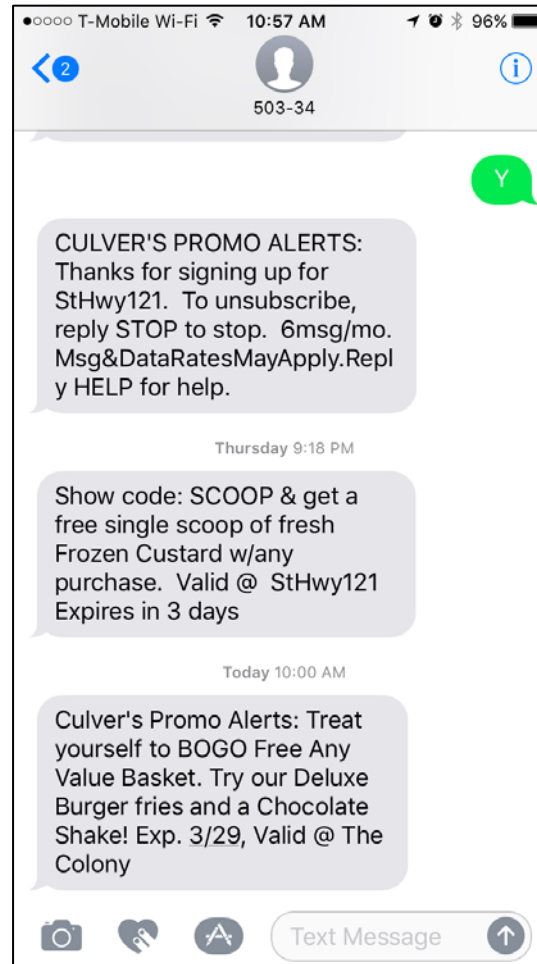
[1n] redeem said generated content,

Culver's provides an offer entry system that is configured to redeem said generated content, e.g.:

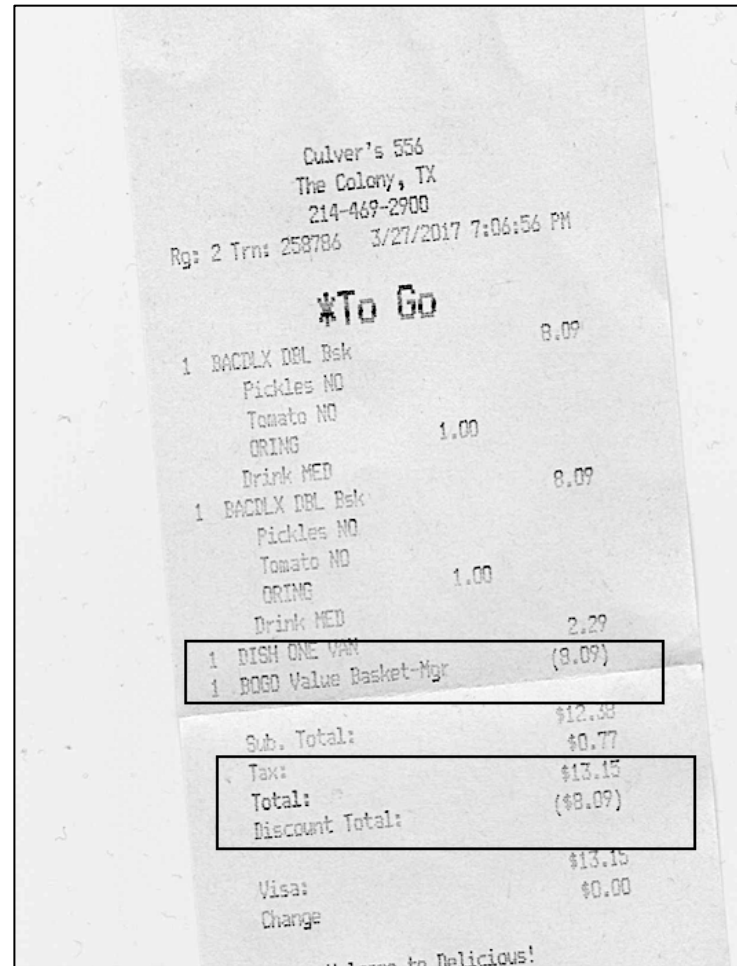
For all POIs, content is redeemed depending on the content. For example, a promotional code may be obtained, a coupon may be redeemed, reward points or other benefits may be provided, a discounted price may be provided, status information about a pending purchase may be provided, information about a past purchase may be provided, a particular product may be purchased, marketing surveys may be carried out, research or analysis programs may be carried out, product reviews may be obtained, customer support may be provided, coupons may be provided, a mobile application may be made available for download, a website or data link may be made available for access, relevant details regarding a product may be provided, or a store location may be provided.

In one example, the generated content is applied at Culver's in-store PPOS during purchase:

[EXAMPLE ON NEXT PAGE]



(Screen shot of SMS offer via short code)



(Scanned image of receipt containing redemption of SMS offer)

[10] generate content redemption

Culver's provides an offer entry system that is configured to generate content redemption information

information comprising said redeemed content, and send said content redemption information to said offer application component for storage in said offer database.

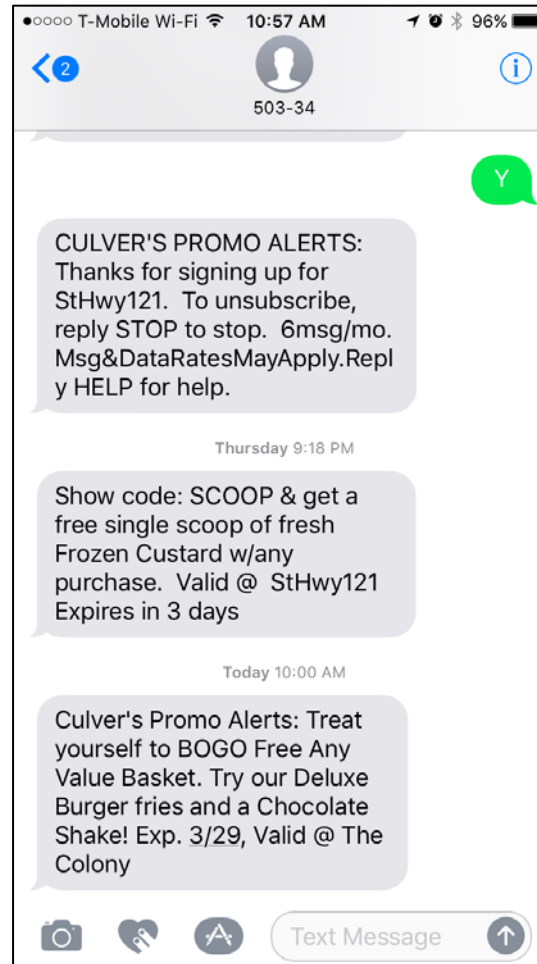
comprising said redeemed content, and send said content redemption information to said offer application component for storage in said offer database, e.g.:
For all POIs, the redemption information is the information that is generated and stored when the offer is redeemed.

Offers may include, e.g., a promotional code, a coupon, an offer to get rewards points or other benefits by shopping, an offer to receive a discounted price, an offer to obtain status information about a pending purchase, an offer to obtain information about a past purchase, an offer to purchase a particular product, an offer to service a product, an offer to obtain financing, an offer to participate in marketing surveys, research or analysis programs, an offer to make payments electronically, an offer to review a product, an offer to obtain customer support, an offer to return a product, an offer to obtain a rebate, an offer to recover an account, an offer to get special deals such as for students, an offer to obtain coupons, an offer for a digital library, an offer to obtain legal information, an offer to download a mobile application, an offer to visit a website or data link, an offer to obtain relevant details regarding a product, an offer to locate a store, an offer regarding upgrades, or an offer for appointment or other reminders.

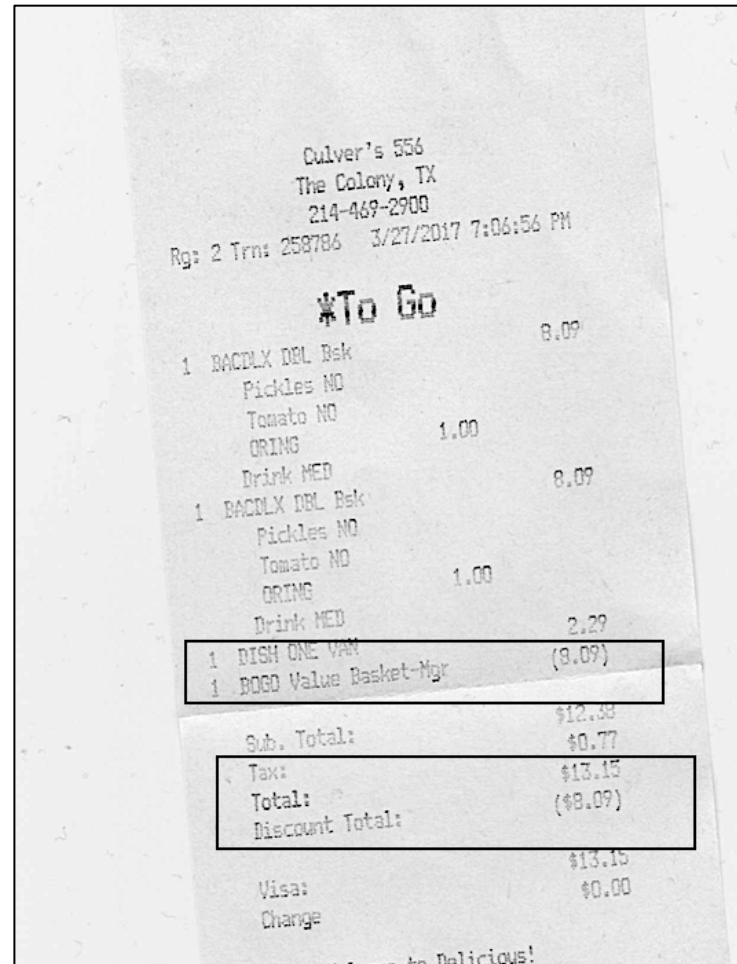
Culver's enables generation of content redemption information that comprises the redeemed content. The redeemed content information is sent to the offer application component for storage in offer database.

For example, the content redemption information is a message or textual information generated after redemption of the promotional code. For example:

[EXAMPLE ON NEXT PAGE]



(Screen shot of SMS offer via short code)



(Scanned image of receipt containing redemption of SMS offer)